

Date: 15/01/2026

MEMORANDUM

Subj: **USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

Ref: (a) PR Number(s): _TBD_

I. BACKGROUND:

1. In considering the references, FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that, under the circumstances of the contract action, only one source is reasonably available (e.g., urgency, exclusive licensing, brand-name, or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition because only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

1. Provide a description of the item or service required, to include

a) the name of the required source or brand name

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b) the required delivery date/period of performance and

POP 28 MAR 2026 TO 27 MARCH 2027 PLUS 4 OPTION PERIODS

c) its intended use.

Provide dial tone for 3 business lines in support of the Radar Over the Horizon (ROTHR), Site which is off premise of NAS Kingsville TX.

2. List the source(s) or known vendor(s) who are able to provide the above described item or service.

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III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. _XX_ Only one responsible source (select all that apply):

1. XX RESTRICTIVE RIGHTS: the source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service.

a. Explain what is subject to the restrictive rights.

RADAR OVER THE HORIZON TOWER IS PROPRIETARY TO FRONTIER COMMUNICATIONS

- b. If drawings are included, who is identified as “owning” the drawings.

ALL APPLICABLE DATA AND SIGNAL CODES BELONG TO FRONTIER AND IS PROPRIETARY, FRONTIER WILL NOT AUTHORIZE OTHERS IN INDUSTRY ACCESS TO SIGNAL AND DATA CODING.

2. EXCLUSIVE LICENSING AGREEMENTS: The item or service is only available from the Original Equipment Manufacturer (OEM), or there is **ONLY ONE** authorized distributor or technical representative for the OEM.

- a. Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

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- b. Identify the distributors / authorized technical representatives for the item or service. Provide evidence of the licensing or OEM certification agreement as an attachment to this document.

_____.

_____.

3. OTHER REASON:

- a. CRITICAL EQUIPMENT: The required item is critical equipment, the failure of which poses a hazard to the operational system, the crew, or the environment.

- i. Explanation on how requirement and intended purpose is critical:

- b. STANDARDIZATION / BRAND NAME: only the specified make/model of the equipment/parts will satisfy the Government’s needs for additional units or replacement items.

- i. Identify Make / Model Number(s): _____

- ii. Identify other systems with this Make / Model:

- c. FORM, FIT, AND FUNCTION: Item is direct replacement parts / components for existing equipment and must be compatible in terms of form, fit, and function with existing equipment / configurations.

- i. Identify Make / Model of existing equipment:

FRONTIER COMMUNICATIONS OWNS THE RIGHTS TO CURRENT ROTH TRANSMITTER TOWERS.

- ii. Describe how the equipment must be compatible with the existing configuration.

TOWERS AND TRANSMITTERS IN AREA OF CONCERN ARE PROPRIETARY TO FRONTIER COMMUNICATIONS. TO PROVIDE ADDITIONAL SERVICES FROM OTHER CARRIERS WOULD REQUIRE CHANGE OF INFRASTRUCTURE AND ADDING

WHILE REMOVING EXISTING TOWERS AND LINES. TO NOT PROCEED FOR CONTINUITY OF SERVICES POSSES A CRITICAL THREAT TO AIRCRAFT SAFETY AND LIFE OF PERSONNEL AS WELL WOULD REQUIRE A SIGNIFICANT COST BURDEN THAT IS NOT IN THE BEST INTERESTS OF THE GOVERNMENT.

d. _____ OTHER:

4. _____ UNUSUAL AND COMPELLING URGENCY: The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits. Urgent requirements are supplies or services that will result in work stoppage, or are mission critical and the routine processing time would injure the Government. The determination that the procurement for the above is an urgent and compelling requirement is based on the following:

- a. Date on which the requirement was identified: _____
- b. Required delivery date / Period of Performance: _____
- c. If the difference between a. and b. is more than one week, explain the delay in submitting the requirement.

- d. Estimated production lead time: _____
- e. Explanation of why delivery / commencement of services by the date required is needed: (explain the impact to the mission, any special circumstances or conditions, etc.)

- f. CASREP Number: _____

IV. ANTICIPATED DOLLAR VALUE OF PROCURMENT: [REDACTED]

[REDACTED]

V. CERTIFICATIONS AND APPROVALS:

Technical / Requirement Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

